

Amendment No. 4 to HB0793

Jones J
Signature of Sponsor

AMEND Senate Bill No. 836

House Bill No. 793*

by adding the following as a new subsection in the amendatory language of Section 1:

(d) Notwithstanding subsections (a) and (b), an LEA or public charter school may elect not to collect the student data described in subsection (a) and not to report any such information maintained by the LEA or public charter school for one (1) or more students to the department of education by notifying the department of education in writing of its decision to opt out of the requirements in subsections (a) and (b). An LEA or public charter school that opts out of the requirements in subsections (a) and (b) shall not be penalized or subject to any adverse action by any agency of this state for electing not to participate in the data collection and reporting requirements of this section.